IN THE UNITED STATES ARMY COURT OF CRIMINAL APPEALS

UNITED STATES
Appellee

v.

Private First Class
Jordan R. Example
U.S. Army
Appellant

BRIEF ON BEHALF OF APPELLEE

Docket No. ARMY 20269999

Tried at Fort Example, Kansas, on 2 and 3 March 2026, before a general court-martial appointed by the Commander, Example Division.

TO THE HONORABLE, THE JUDGES OF THE UNITED STATES ARMY COURT OF CRIMINAL APPEALS

STATEMENT OF THE CASE

The United States adopts the statement of the case in appellant's brief, with the correction that the members returned the findings of guilty on 3 March 2026, not 2 March 2026. The convening authority approved the sentence as adjudged.

STATEMENT OF FACTS

The United States restates the facts from the government's viewpoint. The witness's identification followed a photographic array that the investigator showed to her once. The investigator testified that the witness did not hesitate and that the array contained six photographs with similar features. A second viewing of the array did not occur; the investigator's testimony that a second viewing happened was not credited by the military judge, who found it was a conversation about the description and not a second array.

The search of appellant's wall locker was conducted under a valid command authorization. The roommate testified that appellant had the only key to the locker

he shared with the third soldier, and the laboratory report confirmed the controlled substance was in a pouch with appellant's name written on the label.

ERRORS AND ARGUMENT

I. THE MILITARY JUDGE DID NOT ABUSE HIS DISCRETION IN ADMITTING THE WITNESS'S IDENTIFICATION AFTER A HEARING ON THE EVIDENCE.

Standard of Review

This Court reviews a military judge's ruling on the admissibility of identification evidence for an abuse of discretion. Findings of fact are reviewed for clear error, and conclusions of law are reviewed de novo.

Argument

Appellant's claim that the military judge erred by denying a suppression hearing fails because the record shows the military judge did consider the reliability of the identification. The military judge heard the investigator's testimony, reviewed the photographic array, and found that the witness's identification was not the product of suggestive procedures. A suppression hearing is not required where the defense does not show that the identification procedure was unduly suggestive. Appellant identified no specific fact that a hearing would have developed.

Even if the procedure were suggestive, any error was harmless beyond a reasonable doubt. The witness had known appellant from his duties for several months before the incident, and her testimony about his appearance was consistent with the photographs taken at the time of the arrest.

II. THE EVIDENCE IS LEGALLY SUFFICIENT TO SUPPORT THE FINDING OF GUILTY TO WRONGFUL POSSESSION.

Standard of Review

The Court reviews legal sufficiency de novo, asking whether any reasonable fact-finder could have found the essential elements beyond a reasonable doubt, viewing the evidence in the light most favorable to the prosecution.

Argument

Knowledge of the presence of a controlled substance may be proved by circumstantial evidence, including exclusive control of the place where the substance is found. Appellant had the only key to the locker, and the pouch bore his name. The roommate's testimony that a third soldier had used the room for two weeks does not defeat the inference, because the members were entitled to weigh the testimony and to find that the third soldier did not have access to the locker's key. The evidence is legally sufficient.

WHEREFORE, the United States respectfully requests that this Court affirm the findings of guilty and the sentence as approved by the convening authority.

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Certificate of Service

I certify that a copy of the foregoing was sent via electronic submission to the Defense Appellate Division on November 2, 2026.

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